



Instructions for Contract Between Sponsor and Household Member

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form I-864A
OMB No. 1615-0075
Expires 10/31/2027

What Is the Purpose of Form I-864A?

Form I-864A, Contract Between Sponsor and Household Member, is an attachment to Form I-864, Affidavit of Support Under Section 213A of the INA. A separate Form I-864A must be used for each household member whose income and/or assets are being used by a sponsor to qualify. Each Form I-864A must be completed and signed by two individuals: the sponsor who is completing Form I-864 and a household member of the sponsor who is promising to make his or her income and/or assets available to help support the sponsored immigrant(s). The combined signing of this contract constitutes an agreement that the household member is jointly responsible, along with the sponsor, for the support of the individual(s) named in this contract.

Form I-864A must be submitted with Form I-864.

Form I-864A may only be used when a sponsor's income and assets do not meet the income requirements of Form I-864 and the qualifying household member chooses to combine his or her resources with the income and/or assets of a sponsor to meet the requirements. The obligations of the household member under this contract terminate when the obligations of the sponsor under the Affidavit of Support terminate.

For additional information, see the Immigration and Nationality Act (INA) section 213A and part 213a of Title 8 of the Code of Federal Regulations.

What Is a Sponsor?

A sponsor can be one of the following:

1. The petitioning relative;
2. A relative with a significant ownership interest in the petitioning entity;
3. A substitute in the case of a deceased petitioner, or another person accepting joint and several liability with the sponsor; or
4. Another person accepting joint and several liability with the sponsor; **AND**
5. Someone who completes and files Form I-864 on behalf of an intending immigrant. A sponsor must be an individual and may not be an enterprise, a business, or any other type of organization.

Who May Be Considered a Household Member for Purposes of Form I-864A?

For purposes of this contract, one or more of the following individuals may sign the Form I-864A as a household member if at least 18 years of age:

1. The intending immigrant, if the sponsor seeks to rely on the intending immigrant's continuing income to establish the sponsor's ability to support the intending immigrant's spouse or children;
2. The spouse of the sponsor;
3. The parent, child, adult son or daughter, or sibling relative of the sponsor, if that relative has the same principal residence as the sponsor; or
4. Any other individual whom the sponsor has lawfully claimed as a dependent on the sponsor's most recent Federal income tax return even if that person does not live at the same residence as the sponsor. If more than one individual agrees to help support the sponsored immigrant, each individual must sign a separate Form I-864A.

How Can the Intending Immigrant Be Considered a Household Member?

Listed below are two ways that the intending immigrant may be considered a household member for the purposes of pooling income with the sponsor to meet the Affidavit of Support requirements:

1. The intending immigrant has the same principal residence as the sponsor and the intending immigrant can establish that his or her income will continue from a lawful source, even after acquisition of lawful permanent residence; or
2. The intending immigrant is the sponsor's spouse and the intending immigrant can show that his or her income will continue from a lawful source after acquisition of lawful permanent residence.

Why Does a Household Member Complete Form I-864A?

A household member completes this contract if the household member's income and/or assets will be used to demonstrate the sponsor's ability to meet the income requirements and to maintain the sponsored immigrant at an annual income at the level specified in INA section 213A(f)(1)(E) or section 213A(f)(3).

If the Intending Immigrant Is a Household Member, Must He or She Complete This Contract?

If you are the intending immigrant and the sponsor is including your income on Form I-864 to meet the eligibility requirements, you need to complete this contract only if you have accompanying dependents. If you are the intending immigrant and the sponsor is including only your assets on Form I-864, you do not need to complete this contract, even if you have accompanying dependents.

General Instructions

We provide free forms through the USCIS website. To view, print, or complete our forms, you should use the latest version of Adobe Reader, which you can download for free at <http://get.adobe.com/reader/>. If you do not have internet access, you may call the USCIS Contact Center and ask that we mail a form to you.

Signature. You (or your signing authority) must properly complete and sign your contract. USCIS will not accept a stamped or typewritten name in place of any signature on this contract. A legal guardian may sign for a mentally incompetent person. If your contract is not signed, or if the signature is not valid, we will reject your contract. See 8 CFR 103.2(a)(7)(ii)(A). If USCIS accepts a request for adjudication and determines that it has a deficient signature, USCIS may reject or deny the request.

If you are under guardianship, your legal guardian may print your name and sign Form I-864A for you. "Legal guardian" includes any person who is appointed and authorized by law to protect your estate as a result of your incapacity. The legal guardian must present proof of the appointment as legal guardian of your estate and a copy of an order from the appointing court or agency specifically permitting the guardian to make your income and assets available for the support of the sponsored immigrant.

Validity of Signatures. USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

Filing Fee. TSee Form G-1055, available at www.uscis.gov/forms, for specific information about the fees applicable to this form. For information on processing fees when filing with the U.S. Department of State (DOS), see www.travel.state.gov.

Evidence. When you file your contract, you must submit all evidence and supporting documentation listed in the **Specific Instructions** and/or **What Evidence Must You Submit** sections of these Instructions.

Biometric Services Appointment. USCIS may require you to appear for an interview or provide biometrics (fingerprints, photograph, and/or signature) at any time to verify your identity, obtain additional information, and conduct background and security checks, including a check of criminal history records maintained by the Federal Bureau of Investigation (FBI), before making a decision on your application or petition. If we determine that a biometric services appointment is necessary, we will send you an appointment notice with the date, time, and location of your appointment. If you are currently overseas, your notice will instruct you to contact a U.S. Embassy, U.S. Consulate, or USCIS office outside the United States to schedule an appointment.

At your biometrics appointment, you must sign an oath reaffirming that:

1. You provided or authorized all information in the contract;
2. You reviewed and understood all of the information contained in, and submitted with, your contract; and
3. All of this information was complete, true, and correct at the time of filing.

If you do not attend your biometric services appointment, we may deny your contract.

Copies. You should submit legible photocopies of requested documents unless the Instructions specifically instruct you to submit an original document. USCIS may request an original document at any time during our process. If we request an original document from you, we will return it to you after USCIS determines it no longer needs the original.

NOTE: If you submit original documents when they are not required or requested, **USCIS may destroy the documents after we receive them.**

Translations. If you submit a document with information in a foreign language, you must also submit a full English translation of the document. The translator must sign a certification that the English language translation is complete and accurate, and that they are competent to translate from the foreign language into English. The certification must include their signature, printed name, and their contact information.

USCIS Contact Center. For additional information on the form and instructions about where to file, change of address, and other questions, visit the USCIS Contact Center at www.uscis.gov/contactcenter or call at **800-375-5283** (TTY **800-767-1833**). The USCIS Contact Center provides information in English and Spanish.

How To Complete Form I-864A

1. Type or print legibly in black ink.
2. If you need extra space to complete any item within this contract, use the space provided in **Part 9. Additional Information** or attach a separate sheet of paper. Type or print your name and Alien Registration Number (A-Number) (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.
3. Answer all questions fully and accurately. If a question does not apply to you (for example, if you have never been married and the question asks, "Provide the name of your current spouse"), type or print "N/A," unless otherwise directed. If your answer to a question which requires a numeric response is zero or none (for example, "How many children do you have" or "How many times have you departed the United States"), type or print "None," unless otherwise directed.

Specific Instructions

This contract is divided into nine parts. The sponsor completes **Part 5. Sponsor's Promise, Statement, Contact Information, Declaration, Certification, and Signature** of this contract and the household member completes **Parts 1. - 4., and 6.** The information below provides detailed information to help you complete this contract.

Part 1. Information About You (the Household Member)

Item Number 1. Full Name. Provide your full name.

Item Numbers 2. - 3. Mailing Address. Provide the address where you receive mail.

Item Number 4. Physical Address. If you reside in a location different than where you receive mail, provide the address in the space provided.

Item Number 5. Date of Birth. Provide your date of birth in the mm/dd/yyyy format.

Item Number 6. Country of Birth. Provide the country where you were born.

Item Number 7. U.S. Social Security Number (if any). Provide your U.S. Social Security number if you have one.

Item Number 8. Alien Registration Number (A-Number) (if any). Provide your A-Number. We use your A-Number to identify your immigration records. It begins with an “A” and can be found on correspondence you have received from the Department of Homeland Security (DHS) or USCIS. If you do not have an A-Number, type or print “N/A.”

Item Number 9. USCIS Online Account Number. You will only have a USCIS Online Account Number (OAN) if you previously filed a form that has a receipt number that begins with IOE. If you filed the form online, you can find your OAN in your account profile. If you mailed us the form, you can find your OAN at the top of the Account Access Notice we sent you. If you do not have a receipt number that begins with IOE, you do not have an OAN. The OAN is not the same as an A-Number.

Part 2. Your (the Household Member’s) Relationship to the Sponsor

Item Numbers 1. - 3. Select the item which best reflects your relationship to the sponsor.

If you select **Item Number 1.** (married to the sponsor), you do not have to reside with the sponsor, but you must provide proof that your income will continue from a lawful source after immigration.

If you select **Item Number 2.** (not married to the sponsor), you must provide proof that you currently have the same principal residence as the sponsor and that your income will continue from a lawful source after immigration.

If you are the household member completing this contract, but are not the intending immigrant, select **Item Number 3...**, and select the box below that describes your relationship to the sponsor. If you select “Other Dependent,” you must be listed as a dependent on the sponsor’s most recent Federal income tax return. You do not have to provide proof that you have the same principal residence as the sponsor. If you select any other relative except for spouse, you must provide proof of the relationship and that you have the same principal residence as the sponsor.

Part 3. Your (the Household Member’s) Employment and Income

Item Numbers 1. - 6. Your (the Household Member’s) Employment. Select all boxes that apply to you. A sponsor may not rely on a household member’s income from illegal activities, such as proceeds from illegal gambling or drug sales, to meet the income requirements, even if the household member paid taxes on that income.

Item Number 7. Current Individual Annual Income. Enter your current individual earned or retirement annual income that you are using to meet the requirements of this contract and type or print the total on this line.

You may include evidence supporting your claim about your expected income for the current year if you believe that submitting this evidence will help you establish an ability to maintain sufficient income. You are not required to submit this evidence, however, unless specifically instructed to do so by a government official. For example, you may include a recent letter from your employer, showing your employer’s address and telephone number, and indicating your annual salary. You may also provide pay stubs showing your income for the previous six months. If your claimed income includes alimony, child support, dividend or interest income, or income from any other source, you may also include evidence of ability to maintain that income. However, you may not include any means-tested public benefits as income for the purposes of meeting the income requirement.

Part 4. Your (the Household Member's) Federal Income Tax Information and Assets

You must provide either an Internal Revenue Service (IRS) transcript or a photocopy from your own records of your Federal individual income tax return for the most recent tax year. If you believe additional returns may help you to establish your ability to maintain sufficient income, you may submit transcripts or photocopies of your Federal individual income tax returns for the three most recent years.

You are not required to have the IRS certify the transcript or photocopy unless specifically instructed to do so by a government official; a plain transcript or photocopy is acceptable.

Do not submit copies of your state income tax returns. Do not submit any tax returns that you filed with any foreign government unless you are claiming that you were not required to file a Federal income tax return with the United States government and you wish to rely on the foreign return solely to establish the amount of your income that was not subject to tax in the United States.

If you provide a photocopy of your tax returns, you must include a copy of each and every Form W-2 and Form 1099 that relates to your returns. Do not include copies of these forms if you provide an IRS transcript of your returns rather than a photocopy **unless you filed a joint Federal income tax return with your spouse.**

If you selected **Item Number 4. in Part 3.**, that you are self-employed, you should have completed one of the following forms with your Federal income tax return: Schedule C (Profit or Loss from Business), Schedule D (Capital Gains), Schedule E (Supplemental Income or Loss), or Schedule F (Profit or Loss from Farming). You must include each and every Form 1040 Schedule, if any, that you filed with your Federal income tax return.

As stated previously, you must submit an IRS transcript or copy of your Federal individual income tax return for the most recent tax year. If you choose to rely on income from the three most recent tax years, you must submit an IRS transcript or copy of your Federal individual income tax return. If you were required to file a Federal income tax return for that tax year but did not do so, you must file any and all late returns with the IRS and attach an IRS transcript or copy of your late return and submit it with Form I-864A. If you were not required to file a Federal income tax return under U.S. tax law because your income was too low, attach a typed or printed explanation.

If you were not required to file a Federal income tax return under U.S. tax law for any other reason, attach a typed or printed explanation including evidence of the exemption and how you qualified for it. Residence outside of the United States does not exempt U.S. citizens or lawful permanent residents from filing a U.S. Federal income tax return. See Filing Requirements in the IRS Form 1040 Filing Instructions to determine whether you were required to file.

For purposes of this contract, the line for Total Income on IRS Forms 1040 and 1040A will be considered when determining income. For persons filing IRS Form 1040 EZ, the line for Adjusted Gross Income will be considered.

Obtaining Tax Transcripts. You may use IRS Form 4506-T to request tax transcripts from the IRS. Complete IRS Form 4506-T with the ending date for each of your three most recent tax years listed on line 9. Follow all instructions for completing and filing Form 4506-T with the IRS.

Item Number 1. Select the box if you filed a Federal income tax return for each of the three most recent tax years and have attached the required photocopy or transcript of your Federal income tax return for only the most recent year.

Item Number 2. Most Recent Tax Year Total Income. Indicate the most recent tax year and your Total Income for that most recent tax year. If that amount was zero, enter "zero" or "N/A" for non-applicable. If applicable, select the Optional box indicating that you have attached photocopies or transcripts of your Federal income tax returns for your second and third most recent tax years.

Item Numbers 3. - 5. Assets. Complete this item only if the sponsor is using the value of your assets to help meet the requirements of the affidavit of support. If you are using only your income to help the sponsor meet the requirements, do not complete this item.

If you are the intending immigrant and have no accompanying dependents, then do not list your assets on this contract. Instead, you must list your assets in **Part 7., Item Numbers 6. - 10.** of the Form I-864 and do not need to complete this form.

Only assets that can be converted into cash within one year and without considerable hardship or financial loss to the owner may be included. The owner of the asset must include a description of the asset, proof of ownership, and the basis for the owner's claim of its net cash value.

You may include the net value of your home as an asset. The net value of the home is the appraised value of the home, minus the sum of any and all loans secured by a mortgage, trust deed, or other lien on the home.

If you wish to include the net value of your home, you must include documentation demonstrating that you own it, a recent appraisal by a licensed appraiser, and evidence of the amount of any and all loans secured by a mortgage, trust deed, or other lien on the home. You may not include the net value of an automobile unless you show that you have more than one automobile, and at least one automobile is not included as an asset.

Part 5. Sponsor's Promise, Statement, Contact Information, Declaration, Certification, and Signature

Item Numbers 1. - 10. If the sponsor you are promising to make your income available to is sponsoring the principal intending immigrant (the sponsor should have "Yes" as his or her answer to **Part 4., Item Number 1.** of his or her Form I-864), you should list the intending immigrant in **Part 5., Item Number 1.** and then list any spouse and any and all children that are listed in the sponsor's Form I-864 in the spaces that follow in **Part 5.** of Form I-864A.

If the sponsor you are promising to make your income available to is not sponsoring the intending immigrant (this should be true only in cases with two joint sponsors, with "No" selected on **Part 4., Item Number 1.** of his or her Form I-864), in **Part 5., Item Number 1.**, list any spouse and any and all children that appear on the sponsor's Form I-864, in the spaces that follow in **Part 5.** of Form I-864A.

Select the appropriate box to indicate whether you read this contract yourself or whether you had an interpreter assist you. If someone assisted you in completing the contract, select the box indicating that you used a preparer. Further, you must sign and date your contract and provide your daytime telephone number, mobile telephone number (if any), and email address (if any). Every contract **MUST** contain the signature of the sponsor (or parent or legal guardian, if applicable). A stamped or typewritten name in place of a signature is not acceptable.

Part 6. Your (the Household Member's) Promise, Statement, Contact Information, Declaration, Certification, and Signature

Item Numbers 1. - 7. Read the household member's promise carefully, type or print your name in the spaces provided in **Part 6.** then sign and date the contract. If you do not type or print your name in the Signature section and sign and date the contract, the intending immigrant cannot be issued a visa or be granted adjustment of status based upon the income and/or assets listed on this contract.

If you are under guardianship, your legal guardian may type or print your name on Form I-864A for you to sign. See **General Instructions** for definition of "legal guardian."

Select the appropriate box to indicate whether you read this contract yourself or whether you had an interpreter assist you. If someone assisted you in completing the contract, select the box indicating that you used a preparer. Further, you must sign and date your contract and provide your daytime telephone number, mobile telephone number (if any), and email address (if any). Every contract **MUST** contain the signature of the household member (or parent or legal guardian, if applicable). A stamped or typewritten name in place of a signature is not acceptable.

Part 7. Interpreter's Contact Information, Certification, and Signature

Item Numbers 1. - 6. If you used anyone as an interpreter to read the Instructions and questions on this contract to you in a language in which you are fluent, the interpreter must fill out this section and sign and date the contract.

Part 8. Contact Information, Declaration, and Signature of the Person Preparing this Contract, if Other Than the Household Member

Item Numbers 1. - 6. This person who completed your contract, if other than you, the sponsor or household member, must sign the section. If the same individual acted as your interpreter and your preparer, then that person should complete both **Part 7.** and **Part 8.** A stamped or typewritten name in place of a signature is not acceptable.

We recommend that you print or save a copy of your completed contract for your records.

What Evidence Must You Submit?

You must submit all evidence requested in these Instructions with your contract. If you fail to submit required evidence, USCIS may reject or deny your contract in accordance with 8 CFR 103.2(b)(1) and these Instructions.

Where to File?

This contract **MUST** be filed with Form I-864.

Please see our website at www.uscis.gov/I-864 for the most current information about where to file this contract. For information on filing with DOS, see www.travel.state.gov.

Address Change

If you are a sponsor and are not a U.S. citizen, you must inform USCIS of your new address within 10 days of moving from your previous residence. To do this, you must complete and file Form I-865, Sponsor's Change of Address. For information on filing Form I-865, go to our website at www.uscis.gov/I-865 or call the USCIS Contact Center.

NOTE: Do not complete Form I-865 at the same time that you complete Form I-864A. You should complete and submit Form I-865 to USCIS only when the address you indicated on the original Form I-864A has changed.

This requirement does not relieve a lawful permanent resident sponsor from filing a change of address within 10 days of the change. For information on changing your address, go to our website at www.uscis.gov/addresschange, or call the USCIS Contact Center.

NOTE: Do not submit a change of address request to the USCIS Lockbox. For information on reporting a change of address to the Department of State during consular processing, see www.travel.state.gov.

Processing Information

Initial Processing. Once USCIS or the Department of State accepts your contract, we will check it for completeness. If you do not properly complete this contract, you will not establish a basis for your eligibility and USCIS or the Department of State may reject or deny your contract.

Requests for More Information. USCIS may request that you provide more information or evidence to support your contract. We may also request that you provide the originals of any copies you submit. If we request an original document from you, we will return it to you after USCIS determines it is no longer needed.

Requests for Interview. We may request that you appear at a USCIS office for an interview based on your contract. During your interview, USCIS may require you to provide your biometrics to verify your identity and/or update background and security checks.

Decision. The decision on the sufficiency of Form I-864 involves a determination of whether you have established that you can maintain the intending immigrants and the rest of your household at 125 percent of the Federal Poverty Guidelines (or 100 percent if you are on active duty in the U.S. Armed Forces or U.S. Coast Guard and sponsoring your spouse or child).

USCIS Forms and Information

To ensure you are using the latest version of this contract, visit www.uscis.gov.

Penalties

If you knowingly and willfully falsify or conceal a material fact or submit a false document with your Form I-864A, we will deny your Form I-864A and may deny any other immigration benefit. In addition, you will face severe penalties provided by law and may be subject to criminal prosecution.

The government may pursue verification of any information provided on or in support of this contract, including employment, income, or assets with the employer, financial or other institutions, the IRS, or the Social Security Administration. If you include in this contract any information that you know to be false, you may be liable for criminal prosecution under the laws of the United States.

If you fail to give notice of your change of address, as required by 8 U.S.C. 1183a(d) and 8 CFR 213a.3, you may be liable for the civil penalty established by 8 U.S.C. 1183a(d)(2). The amount of the civil penalty will depend on whether you failed to provide this notice because you were aware that the immigrants you sponsored had received Federal, state, or local means-tested public benefits.

If the failure to report your change of address occurs with knowledge that the sponsored immigrant received means-tested public benefits (other than benefits described in section 401(b), 403(c)(2), or 411(b) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996, which are summarized in the contract in **Part 8.** of Form I-864,) such failure may result in a fine of not less than \$2,000 or more than \$5,000. Otherwise, the failure to report your change of address may result in a fine not less than \$250 or more than \$2,000.

DHS Privacy Notice

AUTHORITIES: The information requested on this contract, and the associated evidence, is collected under the Immigration and Nationality Act (INA) sections 212(a)(4) and 213A.

PURPOSE: The primary purpose for providing the requested information on this contract is to demonstrate that you, the household member, meet the eligibility requirements to execute this contract between a household member and a sponsor that imposes a legally enforceable obligation on the household member to assist the sponsor in supporting a sponsored alien until the obligation terminates. DHS uses the information you provide as part of determining whether or not the adjustment of status applicant or the immigrant visa applicant that you have agreed to help support is eligible for the immigration benefit.

DISCLOSURE: The information you provide is voluntary. However, failure to provide the requested information, including your Social Security number (if applicable), and any requested evidence, may delay a decision on whether the sponsor's Affidavit of Support Under Section 213A of the INA is found sufficient to meet the requirements of INA section 213A, or may result in the sponsor's Affidavit of Support Under Section 213A of the INA being found insufficient.

ROUTINE USES: DHS may share the information you provide on this contract and any additional requested evidence with other Federal, state, local, and foreign government agencies and authorized organizations. DHS follows approved routine uses described in the associated published system of records notices [DHS/USCIS/ICE/CBP-001 Alien File, Index, and National File Tracking System of Records and DHS/USCIS-018 Immigration Biometric and Background Check] and the published privacy impact assessments [DHS/USCIS/PIA-003(b) Integrated Digitization Document Management Program] which you can find at www.dhs.gov/privacy. DHS may also share the information, as appropriate, for law enforcement purposes or in the interest of national security.

Paperwork Reduction Act

USCIS may not conduct or sponsor an information collection, and you are not required to respond to a collection of information, unless it displays a currently valid Office of Management and Budget (OMB) control number. The public reporting burden for this collection of information is estimated at 1 hour and 30 minutes per response, including the time for reviewing instructions, gathering the required documentation and information, completing the contract, preparing statements, attaching necessary documentation, and submitting the contract. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to: U.S. Citizenship and Immigration Services, Office of Policy and Strategy, Regulatory Coordination Division, 5900 Capital Gateway Drive, Mail Stop #2140, Camp Springs, MD 20588-0009; OMB No. 1615-0075. **Do not mail your completed Form I-864A to this address.**